

Nadeem v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 23 July 2024 · 2024:AHC:116653-DB · WRIT - C No. 15996 of 2024 · **Writ petition disposed of by consent; installment payment permitted, restoration to follow the Supply Code procedure upon second installment**

HEADNOTE

A consumer challenging a recovery citation issued for non-payment of dues confirmed by an unchallenged final assessment order under Section 126 of the Electricity Act, 2003 (theft of electricity) may, by consent, be permitted to pay the assessed amount in installments; restoration of a permanently disconnected electricity connection remains subject to the consumer separately applying for restoration under the procedure prescribed by the U.P. Electricity Supply Code, 2005, to be considered once a specified installment is paid — non-disclosure of a pending challenge to the underlying assessment before the Permanent Lok Adalat is a relevant but not independently fatal circumstance where the parties reach a consent disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure-for-restoration

Consent disposal permitting installment payment of s.126 assessment dues, with restoration of a permanently disconnected connection to follow a fresh application under the Supply Code's prescribed procedure

HOLDING

By consent of the parties, the petitioner was permitted to pay the outstanding sum under the recovery certificate in four equal monthly installments (15.8.2024 to 15.11.2024); it was left open to the petitioner to apply for restoration of the electricity connection as per the procedure prescribed under the U.P. Electricity Supply Code, 2005, with any such application to be considered in accordance with law once the second installment is paid. ¶ paras 2-8

LIMITING FACTS

A final assessment order under s.126 (Rs. 99,842/-) had gone unchallenged in the writ petition (the petitioner having separately challenged it before the Permanent Lok Adalat, Aligarh, a fact not disclosed in the petition); the connection was permanently disconnected on 29.2.2024, and the petitioner sought a recovery-citation quashal and restoration.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE UNDERLYING S.126 FINAL ASSESSMENT (RS. 99,842/-), SEPARATELY PENDING BEFORE THE PERMANENT LOK ADALAT, ALIGARH

Not decided by the High Court; left to the Permanent Lok Adalat proceedings. ¶ para 4